



Rent (Control of Increases) Act 1969

1969 CHAPTER 62

An Act to limit increases in rents for local authority houses or payable under regulated tenancies.

[11th December 1969]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

LOCAL AUTHORITY RENTS

1.—(1) A local authority shall not, for any period beginning before 1st July 1971 or such earlier date as the Minister may by order specify, charge in respect of houses to which this Part of this Act applies rents exceeding the former rents except where—

- (a) neither the limit specified in paragraph (a) of section 2(1) of this Act nor, where it applies, that specified in paragraph (b) thereof is exceeded; or
- (b) the increases accord with proposals submitted to and passed by the Minister under section 3 of this Act; or
- (c) the increases are excepted from the provisions of this section by subsection (4) thereof.

(2) The houses to which this Part of this Act applies (in this Part of this Act referred to as "local authority houses") are those of which the rents fall to be carried to the local authority's Housing Revenue Account kept under the Housing (Financial Provisions) Act 1958 or the Housing (Financial Provisions) (Scotland) Act 1968, other than houses occupied, under the terms of their tenancies, for other as well as residential purposes.

(3) Any reference in this Part of this Act to the former rent of a local authority house is, in relation to any date, a reference

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to the rent payable for the house as a local authority house fifty-two weeks before that date or, if there was then no rent so payable, the rent first so payable for it thereafter.

(4) An increase in the rent for a house is excepted from the provisions of this section if it is attributable to improvements or extensions to the house ; and if part of an increase is so attributable that part is excepted from the provisions of this section.

(5) Where, after the coming to an end of a tenancy of a local authority house, the house is let under a new tenancy and the tenant under the new tenancy is neither the person who was the tenant under the first-mentioned tenancy nor a member of that person's family who resided with him, this Part of this Act shall have effect as if no rent payable for the house before the beginning of the new tenancy had been payable for it as a local authority house.

(6) The power to make an order under this section shall be exercisable by statutory instrument, but no such order shall be made unless a draft thereof has been laid before and approved by resolution of each House of Parliament.

2.—(1) The limits referred to in section 1(1)(a) of this Act are—

- (a) a limit on the rent for each local authority house ; and
- (b) a limit on the average of the increased rents for the local authority houses of each local authority.

(2) The limit, at any date, on the rent for each local authority house is a rent the weekly rate of which is ten shillings more than the weekly rate of the former rent.

(3) The limit, at any date, on the average of the increased rents for the local authority houses of any local authority is an average the weekly rate of which is seven shillings and sixpence more than that of the average of the former rents ; and any such average shall be calculated by taking the aggregate of the rents for those of the local authority houses of the local authority the rents for which exceed their former rents and dividing that aggregate by the number of those houses.

(4) The limit on the average of the increased rents for the local authority houses of a local authority does not apply where the houses to be taken into account in calculating that average would be ten per cent. or less of the total of the local authority houses of that authority.

3.—(1) Any proposals submitted by a local authority to the Minister under this section—

- (a) shall be accompanied by such information and be in such form as may be required by any general or special directions of the Minister ; and

Limits of
unrestricted
increases.

Proposals for
other rent
increases.

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- (b) may include provision for making rent increases by stages over a period or for limiting the proposed increases (or those proposed for any stage) in any way, whether by reference to a fixed amount or to a proportion of any rent to be increased, or by reference to a total or average amount or proportion for all the rents or some part of them, or otherwise.

(2) If, on submission of proposals under this section to the Minister, he notifies the local authority of his agreement to the proposals (or two months elapse without his notifying them that he is unable to agree), then subject to any condition attached to the agreement effect may be given to the proposals as proposals passed by the Minister; but where it appears to the Minister that he ought not to agree to the proposals, or not without further information from the authority or further consideration of the proposals by the authority, he may within the two months notify the authority that he is unable to agree, and the submission shall then lapse.

(3) Where the Minister notifies a local authority that he is unable to agree to proposals submitted to him under this section, the local authority may, if they see fit having regard to any observations of the Minister, resubmit all or any of the proposals with or without modification; and the provisions of this section shall apply on the resubmission of any proposals as if they had not previously been submitted.

(4) A local authority shall comply with any general or special directions given by the Minister as to the information to be published, or to be given to persons concerned, about proposals submitted by the authority under this section and any steps taken thereon.

4.—(1) In this Part of this Act—

“house” has the same meaning as in the Housing (Financial Provisions) Act 1958 or, in the application of this Act to Scotland, the Housing (Financial Provisions) (Scotland) Act 1968;

Supplementary provisions.
1958 c. 42.
1968 c. 31.

“local authority” means any authority keeping a Housing Revenue Account under either of those Acts; and

“the Minister” means, in relation to authorities in Scotland or in Wales and Monmouthshire, the Secretary of State and, in relation to other authorities, the Minister of Housing and Local Government.

(2) In calculating, for the purposes of this Part of this Act, the rent payable at any date there shall be excluded—

- (a) any amount expressed under the terms of the tenancy to be payable for the use of furniture;

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(b) any amount so expressed to be payable for, or attributable on a proper apportionment to, rates, or water rates or charges ; and

(c) any amount which, at that date, is expressed under the terms of the tenancy to be payable for services, but only if an amount is so expressed also at the other date concerned ;

and where the rent which would otherwise be payable is increased or reduced according to the circumstances of the tenant (including the earnings of other persons in the house or of members of his family, or the presence of a lodger in the house) rent shall be calculated as if the increase or reduction had not been made.

1868 c. 100.

(3) If a local authority contravenes or fails to comply with any provisions of this Part of this Act or any requirement imposed thereunder, proceedings for the enforcement of those provisions or that requirement by mandamus, injunction, interdict or otherwise (including, in Scotland, proceedings under section 91 of the Court of Session Act 1868) may be instituted by or on behalf of the Minister.

1968 c. 42.

(4) In a case where, by virtue of paragraph 6 of Schedule 3 to the Prices and Incomes Act 1968, the expiration of section 10 of that Act does not affect the operation of that section in relation to any rent accruing in the interval mentioned in that paragraph, the submission and passing under that section of any proposals with regard to that rent shall be deemed for the purposes of this Act to be the submission and passing of proposals under section 3 thereof.

(5) Any administrative expenses incurred by the Minister in consequence of the provisions of this Part of this Act shall be defrayed out of moneys provided by Parliament.

PART II

RENTS UNDER REGULATED TENANCIES

Restrictions on
increases in
rents under
regulated
tenancies.

1968 c. 23.
1965 c. 75.

5.—(1) Where a rent for a dwelling which is subject to a regulated tenancy is registered under Part IV of the Rent Act 1968 or Part II of the Rent Act 1965 in the year 1970 or 1971 and the provisions of this subsection apply, there shall be a period of delay determined in accordance with the Schedule to this Act and the rent payable for a statutory period of the tenancy beginning during the period of delay shall not be increased by a notice of increase except to the extent (if any) permitted under that Schedule ; and any such notice which purports to increase it further shall have effect to increase it to the extent so permitted but no further.

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(2) Where a tenant under a regulated tenancy of a dwelling, or a person who might succeed him as a statutory tenant, becomes the tenant under a new regulated tenancy of the dwelling and, whether before or after he becomes the tenant under the new regulated tenancy, a rent for the dwelling is registered, then, if the provisions of subsection (1) of this section apply—

- (a) the rent limit for any contractual period of the new tenancy beginning during the period of delay shall be the amount to which, if the first-mentioned tenancy had continued, the rent payable thereunder could have been increased in accordance with this Act for a statutory period beginning at the same time, and in relation to such a contractual period the reference in section 47(3) of the Rent Act 1968 to section 20(2) of that Act, and the reference in section 28(2) of the Rent Act 1965 to section 3(2) of that Act, shall be construed as a reference to this subsection ; and 1968 c. 23. 1965 c. 75.
- (b) in relation to any statutory period of the new tenancy subsection (1) of this section and the Schedule to this Act shall have effect as if it were a statutory period of the first-mentioned tenancy.

(3) The provisions of subsection (1) of this section apply in every case, except—

- (a) where the rent is registered as mentioned in paragraph 1, 6 or 8 of Schedule 3 to the Housing Act 1969 or paragraph 1, 6 or 8 of Schedule 4 to the Housing (Scotland) Act 1969 ; or 1969 c. 33. 1969 c. 34.
- (b) where the rent is registered on an application made under section 45(4) of the Rent Act 1968 or paragraph 16 of Schedule 3 to the Rent Act 1965 (certificates of fair rent) and is so registered otherwise than in substitution for a rent with respect to which the provisions of subsection (1) of this section apply ; or
- (c) where the rent is registered (by virtue of paragraph 5 of Schedule 9 to the Housing Act 1969) under section 49 of the Rent Act 1968 (dwellings improved under repealed enactments) ; or
- (d) where the regulated tenancy is one which has arisen by virtue of Part I of the Landlord and Tenant Act 1954 on the termination of a long tenancy and the rent is registered while the rent for the dwelling continues to be that last payable under the long tenancy. 1954 c. 56.

6.—(1) In the application of this Part of this Act to England and Wales, “notice of increase” means a notice of increase under section 22(2) of the Rent Act 1968 and other expressions shall be construed as in that Act. Supplementary provisions.

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1965 c. 75.

(2) In the application of this Part of this Act to Scotland, "notice of increase" means a notice of increase under section 7 of the Rent Act 1965 and other expressions shall be construed as in that Act.

1968 c. 23.

(3) The power to make regulations under section 50 of the Rent Act 1968 for the purposes of Part IV of that Act shall extend to this Part of this Act in its application to England and Wales.

(4) The power to make regulations under section 46 of the Rent Act 1965 for the purposes of that Act shall extend to this Part of this Act in its application to Scotland.

PART III

GENERAL

Short title,
commence-
ment and
extent.

7.—(1) This Act may be cited as the Rent (Control of Increases) Act 1969.

(2) This Act shall come into force on 1st January 1970.

(3) This Act does not extend to Northern Ireland.

SCHEDULE

Section 5(1).

PHASING OF RENT INCREASES

Period of delay

1. The period of delay with respect to any rent shall be—

- (a) if the rent is registered in the year 1970, a period of two years ;
- (b) if the rent is registered in the year 1971, a period of one year ;

beginning with the date on which the rent is registered.

Permitted increases

2.—(1) The rent for any rental period may be increased to the aggregate of the following:—

- (a) the amount of the previous limit, calculated in accordance with paragraph 3 of this Schedule ; and
- (b) the amount (if any) apportioned to services in accordance with paragraph 4 of this Schedule ; and
- (c) the appropriate proportion of the difference between the registered rent and the aggregate of the amounts specified in paragraphs (a) and (b) above.

(2) The appropriate proportion mentioned in sub-paragraph (1)(c) of this paragraph is—

- (a) one-third if the rental period begins in the first year of the period of delay ; and
- (b) (in a case where the period of delay is two years) two-thirds if the rental period begins in the second year of the period of delay.

(3) Notwithstanding anything in the preceding provisions of this paragraph, the amount to which the rent for any rental period may be increased shall not in any case be less than seven shillings and sixpence a week above the following, that is to say,—

- (a) if the rental period begins in the first year of the period of delay, the aggregate of the amounts specified in sub-paragraphs (1)(a) and (1)(b) of this paragraph ;
- (b) if, in a case where the period of delay is two years, the rental period begins in the second year, the amount to which the rent for a rental period beginning in the first year could be increased ;

but nothing in this paragraph shall be taken to enable the rent to be increased above the amount registered.

Previous limit

3.—(1) For the purposes of this Schedule the previous limit of a rent shall be taken to be, subject to sub-paragraph (2) of this paragraph, the amount which at the date of registration was recoverable by way of rent or would have been so recoverable if all notices of

SCH.
1965 c. 75.
1968 c. 23.
1968 c. 42.

increase authorised by the Rent Act 1965, the Rent Act 1968 or regulations under section 9 of the Prices and Incomes Act 1968 had been served.

1957 c. 25.

(2) Where the rent includes an amount payable in respect of rates, the amount so payable, ascertained in accordance with Schedule 4 to the Rent Act 1968, or in accordance with Schedule 2 to the Rent Act 1957 as applied by section 47(2) of the Rent Act 1965, shall be deducted from the amount specified in sub-paragraph (1) of this paragraph in calculating the previous limit of the rent.

Amount to be apportioned to services

4.—(1) Where the registered rent includes a payment in respect of services provided by the landlord or a superior landlord, then if—

(a) the rent is not registered as a variable rent in accordance with section 47(4) of the Rent Act 1968 or section 28(3) of the Rent Act 1965; but

(b) not less than 10 per cent. of the amount of the registered rent is in the opinion of the rent officer or rent assessment committee fairly attributable to the provision of the services;

the amount so attributable shall be noted in the register.

(2) Where it appears to the rent officer or rent assessment committee that some amount was in the previous limit attributable to the provision of services by the landlord or a superior landlord and was less than the amount noted in pursuance of sub-paragraph (1) of this paragraph, then—

(a) if the amount so attributable can be ascertained the difference between it and the amount so noted shall be the amount apportioned to the services ;

(b) if the amount so attributable cannot be ascertained it shall be taken to be an amount bearing to the previous limit the same proportion as the amount noted in pursuance of sub-paragraph (1) of this paragraph bears to the amount of the registered rent, and the difference between the amount so taken and the amount so noted shall be the amount apportioned to the services ;

and the amount apportioned to the services in accordance with this sub-paragraph shall also be noted in the register.

(3) Where it appears to the rent officer or rent assessment committee that no amount was in the previous limit attributable to the provision of services by the landlord or a superior landlord, the amount noted in pursuance of sub-paragraph (1) of this paragraph shall be the amount apportioned to the services and shall be noted as such in the register.

Successive rents

5. Where the provisions of section 5(1) of this Act apply with respect to the rent for a dwelling (in this paragraph referred to as the first rent) and, during the period of delay, a higher rent for the

dwelling is registered with respect to which those provisions also apply, then if— SCH.

(a) the higher rent is registered on an application made under section 45(4) of the Rent Act 1968 or paragraph 16 of 1968 c. 23. Schedule 3 to the Rent Act 1965 (certificates of fair rent); 1965 c. 75. or

(b) the whole of the difference between the first rent and the higher rent is apportioned to services;

the rent for any statutory period beginning after the registration of the higher rent may be increased to an amount arrived at by adding the difference between that rent and the first rent to the amount to which the rent for that period could have been increased had the first rent remained registered.

Adjustment for rental periods of different lengths

6. In ascertaining for the purposes of this Schedule whether there is any difference between amounts or what that difference is such adjustments shall be made as may be necessary to take account of periods of different lengths; and for that purpose a month shall be treated as one twelfth and a week as one fifty-second of a year.

Substitution of rent determined by rent assessment committee

7. Where a rent determined by a rent assessment committee is registered in substitution for a rent determined by the rent officer, the preceding provisions of this Schedule shall have effect as if only the rent determined by the rent assessment committee had been registered; but the date of registration shall be deemed for the purposes of section 5 of this Act and of this Schedule (but not for the purposes of section 22(3) of the Rent Act 1968 or section 7(b) of the Rent Act 1965) to be the date on which the rent determined by the rent officer was registered.

Procedural provisions

8. Any amount to be noted in the register in pursuance of paragraph 4 of this Schedule as an amount fairly attributable to the provision of services shall be included among the matters to be specified in an application for the registration, and any such amount and any amount to be so noted as an amount apportioned to the services shall be included among the matters with respect to which representations may be made or consultations are to be held or notices to be given under Schedule 6 to the Rent Act 1968 or under paragraphs 4 to 12 of Schedule 3 to the Rent Act 1965.